

Fitzgerald's job was abolished.¹¹ But the Secretary declined to be more specific. He responded to several questions by invoking "executive privilege."¹²

At a news conference on January 31, 1973, the President was asked about Mr. Seamans' testimony. Mr. Nixon took the opportunity to assume personal responsibility for Fitzgerald's dismissal:

"I was totally aware that Mr. Fitzgerald would be fired or discharged or asked to resign. I approved it and Mr. Seamans must have been talking to someone who had discussed the matter with me. No, this was not a case of some person down the line deciding he should go. It was a decision that was submitted to me. I made it and I stick by it."¹³

A day later, however, the White House press office issued a retraction of the President's statement. According to a press spokesman, the President had confused Fitzgerald with another former executive employee. On behalf of the President, the spokesman asserted that Mr. Nixon had not had "put before him the decision regarding Mr. Fitzgerald."¹⁴

After hearing over 4,000 pages of testimony, the Chief Examiner for the Civil Service Commission issued his decision

¹¹ See *id.*, at 83a-84a.

¹² See *ibid.*

¹³ *Id.*, at 185a. A few hours after the press conference, Mr. Nixon repeated privately to Presidential aide Charles Colson that he had ordered Fitzgerald's firing. *Id.*, at 214a-215a (recorded conversation of Jan. 31, 1973).

¹⁴ *Id.*, at 196a (transcription of statement of White House press secretary Ronald Ziegler, Feb. 1, 1973). In a conversation with aide John Ehrlichman, following his conversation with Charles Colson, see n. 13, *supra*, the President again had claimed responsibility for Fitzgerald's dismissal. When Ehrlichman corrected him on several details, however, the President concluded that he was "thinkin' of another case." *Id.*, at 218a (recorded conversation of Jan. 31, 1973). See *id.*, at 220a. It was after this conversation that the retraction was ordered.